

Erbermann 1661

Nervi sine mole (Bellarminus Vindicatus) — Acceptance as ultima dispositio and the de fide divina conclusion

by Veit (Vitus) Erbermann, S.J. (1597–1675); Würzburg, 1661; reprinted as the *Vindiciae* in the *Vivès Opera omnia Bellarmini*, vol. VII

[Online Location of Text Here](#)

- Latin transcribed complete (no elisions) from the page images of the 1661 Würzburg edition: vol. 1 (Partes 1–2), MDZ bsb10773318; vol. 2 (Partes 3–4), MDZ bsb10773320. Loci: Tom. I, lib. III, cap. 3 (printed p. 313) and cap. 6 §.2 (printed pp. 389–391 — pp. 390–391 physically misnumbered 388/390 in the print; reading order fixed by catchwords); Tom. II, lib. I, cap. 5 §.2 (printed pp. 43–45). The Vivès reprint's "Ad Caput IX" renumbering is the editors', not Erbermann's. Long-s normalized; tildes and -que expanded silently; the source's own u/v and i/j inconsistencies retained; single square brackets are original to the 1661 print (Erbermann's hypothetical words of Christ); [[p. NN]] marks page breaks editorially.
- Last Edit: July 15, 2026.
- Version: 1.1 (complete passages)
- Selection pages: 1661 Tom. I pp. 313, 389–391; Tom. II pp. 43–45

Note on this selection: the earliest near-verbatim statement of universal peaceful acceptance as the criterion of papal legitimacy so far documented in this repository — 1661, a generation before the classic manualist formulations — stated in direct answer to a proto-sedevacantist objection. Four texts, now complete. (1) Against Ames ("it is not certain de fide that this or that council was legitimate"), the acceptance-syllogism: the whole Church, pillar and ground of the truth, cannot err in what pertains to her common religion; her judgment accepting Pius IV and Trent so pertains; therefore "de fide divina est, illud fuisse legitimum" — with the pope/council equivalence ("par ratio huius numero Concilii, et hujus Papae") and the per-se-primo/secundo machinery expressly bracketed. (2) The Alexander VII text: the reigning pope's pontificate "arises immediately from the election of the Cardinals and the acceptance of the Church," founded on the divine law by which Christ gave the Church the power both of determining the mode of election and of performing the election and acceptance — with the note-taxonomy "licet hoc forte non esset juris divini, est tamen de Fide divina." (3) The three conditions of the pope as infallible rule (canonically elected AND ACCEPTED BY THE CHURCH; a

controversy of faith; an *ex cathedra* pronouncement), against Conring's first objection. (4) The centerpiece, complete for the first time across the misnumbered pages: Conring's objection — "how do we know that God does not sometimes permit the multitude to adore as Pontiff one who is not the legitimate Pontiff?" — answered by the promised-means syllogism (Christ, faithful and wise, is bound to the means his promised end requires: an incorrupt Scripture and legitimate successors in the Apostolic See), and then by the acceptance-criterion: all are legitimate successors of Peter "who, elected in whatever manner at last, are peacefully accepted and venerated as such by the greatest part of the faithful without any contradiction... whom, whether legitimately or faultily elected, the Church accepts without controversy — since on this acceptance, as on the ultimate disposition, Christ is judged to have willed to make depend that quasi-form, namely the fullest and infallible power, to be conferred immediately by Himself. And this... we rightly assert to happen in fact; and lest all things waver, and we lack a living infallible rule of Faith, thus plainly it had to be." The continuation (Conring's simony objection) then cites Pallavicino BY NAME ("as Card. Pallavicino best noted, lib. de Fide num. 143") and restates the second-election doctrine: even were the cardinals' election void, "there would still follow another election, voidable by no positive law, which the whole Church performs by accepting that man as true Pontiff" — the direct textual bridge from Bellarmine's *De Conciliis* II.19 (see the 1588 entry) through Pallavicino (1649 entry) to Kirsch (1767 entry). Classification: School 1a, cause-version (*ultima dispositio*).

Tom. II, lib. I, cap. 5, §.2 — Objections 4–5 against conciliar infallibility, with the acceptance-syllogism (printed pp. 43–45)

[[p. 43]] ¶ Obj. 4. *In every assembly of a multitude it often happens that the greater part defeats the better. Therefore Councils, in which decrees are made according to the votes of the greater part, can err.*

[[p. 44]] Bell[armine]: *In human assemblies this sometimes so happens; but not in a legitimate Council, where the Holy Spirit presides, and Christ is in the midst of those who are gathered in his name, and where he is present to whom it was said by Truth itself, "I have prayed for thee," etc. For although the greater part may resist the better (as happened in the Councils of Ariminum and Ephesus II), yet it never conquers; for the acts of such Councils are soon voided by him whose office it is to confirm the brethren. Ames, to enervate this, accomplished two things: 1. he badly truncated Bellarmine's words in reciting them; 2. he sets down mere antitheses: but robust proofs were needed to strike down so lucid a truth. But as to his demand that it be shown where the Holy Spirit resides — since it is not always in the greater part of the Council, which can resist the Truth (as Bellarmine admits of Ariminum and Ephesus II), nay, in no single member of the Council — I reply: He resides infallibly in him to whom Christ promised it, the heir of St. Peter, and in those adhering to him.*

¶ Obj. 5. *It is not certain by divine faith that this or that Council was legitimate, and legitimately decreed these or those things. Therefore the decrees of Councils cannot produce firm, infallible, and divine faith.* Ames even here is diffuse beyond his custom, but sweats in vain. For that antecedent is false, as is established from what was said above, Tom. 1, book 3, chap. 6, §. 2, to Ames's third instance. For the reasoning is the same for this numerical Council and for this Pope. In the same way, therefore, we overthrow that antecedent of Ames by this theological syllogism: The whole Church (as the pillar and ground of the truth) cannot err in things pertaining to the common religion

of the whole Church. But the judgment by which the Church accepted both Pius IV and the Council of Trent confirmed by him pertains to the common religion of the whole Church. Therefore in this judgment the Church cannot err, and consequently it is of divine faith that it was legitimate, etc. Hence there is no need here to dispute more laboriously whether one proposition of faith and another naturally or morally evident yield a conclusion of faith, or a theological one. On this see [[p. 45]] the Scholastics on the proemium of the First Part and on the Secunda Secundae. Gerhard brings nothing new here.

Tom. I, lib. III, cap. 3 — the Alexander VII acceptatio-Ecclesiae text (printed p. 313)

[[p. 313]] ...but that that Succession — not only the one which exists in the Roman Pontificate, but even insofar as it is in the Roman Pontificate — is of divine right, is not certain of Faith, but is nevertheless most probable and the persuasion of most Catholics; therefore Bellarmine speaks of it as we are all prudently accustomed to speak in a like case, namely: *Though this were perhaps not of divine right, it is nevertheless of divine Faith*. So in a like case below, chap. 8, Bellarmine could say: Even if it be perhaps not of divine right that Bishops receive their jurisdiction from the Pope, yet that it belongs to them is certain from Faith. Ames, thirdly: *If the Succession of the Roman Bishop in the Pontificate of Peter had its origin from a deed of Peter, then it is not by any divine institution or right: for his deed does not constitute divine right*. Gerhard argues similarly, th. 17 and following. I reply as already above: the deed itself presupposes the institution and the divine right; just as even now the Pontificate of Alexander VII arises immediately from the election of the Cardinals and the acceptance of the Church; yet this would profit nothing unless it were founded on the divine right by which Christ gave the Church the faculty both of determining the mode of election, and of performing the election itself and the acceptance. The Puritans will be compelled to admit the same of their Calvinist ministers of the word, whoever they may be, as will be plain to anyone who considers it.

(The page then continues with a fresh objection on the distinct question whether the Roman Pontiff is head of the Church by divine right — outside this unit.)

Tom. I, lib. III, cap. 6, §.2 — Conring's first objection and the three conditions (printed p. 389)

[[p. 389]] Conring, with Ames, objects first: *If GOD sometimes permits that for a while there is no Pope, or (as in a Schism) a plainly uncertain one, then it has not been established by divine providence that the Pope be the rule of Faith. But the former is true. Therefore also the latter. Of the Minor no one doubts. The Major likewise is evident: for it is repugnant to Wisdom that, for a thing which ought to be eternal, stable, and certain, there should be constituted as principle and rule that which is often uncertain, and sometimes plainly does not exist*. I reply: that Major's connection is null, and is to us evidently false if it be understood in the sense in which we Catholics understand — and it altogether ought to be understood — that *it is established by divine providence that the Pope be the Rule of Faith*: namely, that the Pope is then the infallible Rule of Faith when he both actually exists, canonically elected and accepted by the Church, and some controversy of Faith is being agitated, and the Pope pronounces ex cathedra. If one of

these three is lacking (as it is lacking when there is a Schism, or the See is vacant, or no controversy presses for decision, or he does not define ex cathedra), the Pope is not the infallible rule of Faith.

Tom. I, lib. III, cap. 6, §.2 — Conring's 'multitudo adoret' objection; the pacifice-acceptantur reply; the simony continuation citing Pallavicino (printed pp. 389–391)

[[p. 389]] But Conring presses on and asks: *Since GOD does not prevent unfit men from sometimes presiding long enough — sometimes none, [[p. 390]] sometimes uncertain, sometimes wicked Pontiffs — whence do we know that it does not sometimes happen, by his permission, that the multitude adores as Pontiff one who is not the legitimate Pontiff? If you show the difference by some robust Syllogism, you will prove yourself a great man.*

I reply: let this be the robust Syllogism. Whoever, being faithful and wise, promises that he will furnish some end, is bound also to furnish the fitting means. But Christ the Lord, faithful and wise, promised that he would furnish the end (namely the assistance of the Holy Spirit, who should remain with his Church forever). Therefore Christ the Lord is bound also to furnish the efficacious means. Now there are no fitter means for preserving supernatural truth incorrupt than the written word of GOD, and its genuine sense exhibited by one visible and infallible Interpreter. Therefore the providence and fidelity of CHRIST the Lord is bound to furnish these: namely, incorrupt codices of Holy Scripture (in the manner explained in book 1, chap. 3, §.), and legitimate Successors in the Apostolic See. I confirm this, and ask: Could not CHRIST, had he willed, have instituted an infallible Head of the Church, whom all the faithful would be bound to obey in causes of Faith under pain of eternal death — for example in these clear words: [*I command Thee, Simon Peter, to be the universal Pastor of my Church in the whole world, and I promise to thee and to all legitimate successors in the Roman chair, that I will confer on you infallible assistance, that the gate of hell and heresies may never prevail against my Church, etc.*] 2. And in that event, would not all be reckoned legitimate Successors of St. Peter who, elected in whatever manner at last, are peacefully accepted and venerated as such by the greatest part of the faithful without any contradiction? Why not? For all those would be legitimate successors of St. Peter whom, whether legitimately or faultily elected, the Church accepts without controversy — since **[[p. 391]]** on this acceptance, as on the ultimate disposition, Christ would be judged to have willed to make depend that quasi-form, namely the fullest and infallible power, to be conferred immediately by Himself. And this (which, as to its possibility, does not seem deniable by any man of sound mind) we rightly assert to happen in fact; and lest all things waver, and we lack a living infallible rule of Faith, thus plainly it had to be.

Continuation on printed p. 391 (the simony objection): Conring presses a second time: *At least the positive laws of the Pontiffs (such as that of Julius II in the Lateran Council, by which every Papal election made simoniacally is declared absolutely invalid) render the election, acceptance, and constitution of the Pontiffs quite uncertain. For how easy it is for such a simoniacal defect to creep into an election!* I reply: It is certain that that Constitution of Julius II speaks not of past but of future elections. I reply, secondly: Much more probable is the opinion of Cardinal Tuschus, Sopranus, etc., that notorious Simony is required; and on that opinion it is morally certain that such an election would never be accepted by the Emperor, Kings, Bishops, etc., being Catholics — whence, on this view, no danger or uncertainty can reasonably be feared for the succession of the Popes. I reply,

thirdly: Even on the opposite opinion of Bonacina, the alleged inconveniences would still not follow. The reason is that then not only does the Church supply whatever she can supply, but also (as Cardinal Pallavicino best noted, book de Fide, num. 143) [such laws] neither ought to be nor can be understood except with respect to that first election which the Lord Cardinals now make — through which, we confess, it is not rendered certain of Faith that the elect is the true Pontiff. Whence, although such an election had been void from some such impediment, there would still follow another election, voidable by no positive law, which the whole Church makes by accepting that man as the true Pontiff.

[[p. 392]] For this acceptance, although it be moved by a preceding error, is nevertheless not conditional but absolute; since it is better for the Church to have for Pontiff someone who was invalidly elected, than ignorantly to lack a true Pontiff, and to venerate as such one who in reality is not. And if it is expedient that the ownership of things not be uncertain — and therefore prescriptions have been introduced not only by civil law, but some, even of longest duration, by the law of nations and natural law, through which, in dependence on an error, he becomes owner of things who before was not owner — how much more is it expedient that the authority of the divine Vicar not be uncertain? And so it is of divine and natural law that whoever is accepted by the Church as such, becomes such, even if before he was not. To this pertains the reasoning brought forward in the *lex Barbarius* (Digest, de officio praetorum), where it is declared that a slave ignorantly elected Praetor, and held as such, not only performed valid acts but was a true Praetor; since the Roman people, who held him for such, could dispense, and is deemed so to have willed. And this law is not to be considered an arbitrary constitution proceeding from the power of civil law (otherwise it would have looked to future cases, not past ones, upon which that law decrees), but as a prudent and philosophical interpretation of natural law: for independently of every positive constitution the Roman people is deemed to have had, in that case, the will which it was expedient for it to have. So therefore, in the present business, the power of providing itself with a legitimate Head rests also with the whole Church, whenever the ordinary electors (whether culpably or inculpably) do not provide for the future — as happens when their election was void, and yet is held as ratified. Then, therefore, the Church is deemed to elect him whom she accepts, notwithstanding any defects whatsoever.